

STATE OF NEW YORK

2486--A

2025-2026 Regular Sessions

IN SENATE

January 21, 2025

Introduced by Sen. PARKER -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the energy law, in relation to the creation of geothermal energy generation facilities in New York state

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The energy law is amended by adding a new section 3-105 to
2 read as follows:

3 § 3-105. Geothermal energy generation facilities. New geothermal, dry
4 steam, flash steam, and binary cycle plant facilities shall be created
5 and installed on an expedited process, in conjunction with the following
6 guidelines:

7 1. Such facilities shall be constructed on sites that are pre-approved
8 by the New York state energy research and development authority in
9 consultation with the New York power authority.

10 2. The New York state energy research and development authority, in
11 consultation with the New York power authority, shall oversee the
12 mapping, tracking, and reporting of areas that have been approved and
13 sited as ready for geothermal energy generation facilities to be erected
14 on approved sites.

15 3. The documented information for the readying of construction and
16 installation of such geothermal energy generation facilities shall be
17 made public on the New York state energy research and development
18 authority's website for a minimum of thirty days allowing for public
19 comment on the approved site if the sited area is in conjunction with a
20 local municipality, and/or would significantly change the overall quan-
21 tity of soil grade 1-4 agricultural land in the approved area. However,
22 if there are no significant adverse effects to the local municipality
23 and/or soil grade 1-4 agricultural land, the thirty-day comment period

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 shall be closed with no need for further review, and construction of the
2 facility may commence effective immediately.

3 4. The New York state energy research and development authority is
4 directed to promulgate rules and regulations, in consultation with any
5 other relevant agency, for the purposes of further expediting permitting
6 for construction and integration of geothermal energy generation facil-
7 ities when hiring a bonafide or state-approved local union to take on
8 the primary roles of installation and construction of the new geothermal
9 energy generation facility, or the retrofitting of older or existing
10 fossil fuel facilities, that are capable of being retrofitted for geoth-
11 ermal energy production.

12 5. The mapping process shall include, but not be limited to the char-
13 acteristics of the area that has been approved to be a geothermal energy
14 generation site, whether it is capable of being reasonably and timely
15 connected to the grid, whether the proposed site could accommodate a
16 qualified energy storage system, the depth that the proposed geothermal
17 facility would have to bore to be economically viable, and an estimate
18 of the overall cost to develop the site.

19 § 2. This act shall take effect immediately.